



POLICE DEPARTMENT

February 18, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308317 (Incident Date: August 21, 2023) regarding Police Officer Luis Matos, Tax No. 963143 (PODS No. C-032830) and Police Officer Joseph DiFrancesca, Tax No. 973356 (PODS No. C-032858)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202308317, pertaining to Police Officers Luis Matos and Joseph DiFrancesca. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officers would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner has determined the actions of Police Officer Matos were not unreasonable, as he was merely trying to get the complainant up onto his feet, after being placed under arrest for a violent crime. Police Officer Matos stated when he attempted to pick the complainant up, he grabbed him under his arms and pulled up, but the complainant threw his weight down at the same time. These counterforces caused Police Officer Matos to lose his grip on § 87(2)(b). The Police Commissioner has determined the actions of Police Officer Matos were justified and reasonable when considering the totality of the circumstances. As the officers attempted to place the complainant into handcuffs he resisted their efforts. Despite the numerous officers on scene and the use of a taser, the officers were unable to rear hand-cuff the complainant due to his resistance. Instead, they were forced to front handcuff the complainant after a prolonged struggle. The incidental injury resulting from the resisting individual's actions were not intentional. Police Officer Matos has been a member of the New York City Police for eight (8) years and has no prior substantiated CCRB allegations, or prior formal Department disciplinary history.

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With respect, to the allegation substantiated against Police Officer DiFrancesca it has been determined that no disciplinary action is appropriate. The body-worn camera footage is clear that Police Officer DiFrancesca's actions were de minimis, non-injurious, and lacked evidence of malice. Police Officer DiFrancesca stated he grabbed the complainant's leg quickly to stop the complainant from kicking since he continued to tense his legs, which Police Officer DiFrancesca considered resistance. Police Officer DiFrancesca has been a member of the New York City Police Department for over three (3) years and has no prior substantiated CCRB allegations, or prior formal Department disciplinary history.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice, intends to retain jurisdiction over this matter and impose no disciplinary action against Police Officer Matos and Police Officer DiFrancesca for their alleged misconduct.

Sincerely,



for Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

February 20, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202308317 PO Luis Matos (963143) and PO Joseph DiFrancesca

Dear Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael Baker, dated February 18, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Matos and PO DiFrancesca. Pursuant to Paragraph 2 of April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that you determined the actions of both officers were not unreasonable and it would be detrimental to the Police Department’s disciplinary process to pursue charges. The CCRB respectfully disagrees with your assessment. PO Matos and PO DiFrancesca’s excessive force was captured on BWC and is fully supported by the evidence, including medical records, and warrants the serving of Charges and Specifications.

In regard to PO Matos, it is undisputed that § 87(2)(b) arm was broken. While there is no angle on any BWC that shows exactly where PO Matos grabbed § 87(2)(b) PO Santiago’s BWC shows that PO Matos did not grip § 87(2)(b) from under his arms but appeared to be somewhere lower; by his forearms. Additionally, the quick jerking motion PO Matos used to stand § 87(2)(b) up does not appear to comport with the Patrol Guide’s instructions to ensure the safety of others, even that of a prisoner and to not use force on a subject already in handcuffs. PO Matos’ BWC at 4:51 captures when officers ask and affirmatively confirm that the civilian is handcuffed. PO Matos subsequently jerks § 87(2)(b) arm resulting in a broken arm.

PO DiFrancesca, his actions are described in your letter as “de minimis, non-injurious, and lacked evidence of malice.” However, those are not necessary elements for excessive force and his misconduct is in direct violation of the Department’s Patrol Guide.

PG 221-01 PG 3 PARA 2 states: Members of the service **SHALL NOT:**

c. Use *any level of force* on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or otherwise overcome active physical resistance or assault.



ERIC L. ADAMS
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Video evidence shows that § 87(2)(b) was already handcuffed and had just been pulled up and dropped down by PO Matos, resulting in a broken arm. Unlike the first two strikes to the civilian's leg, by PO DiFrancesca, none of the above factors existed at the time PO DiFrancesca used force again to slap his leg. It was unreasonable for PO DiFrancesca to slap the civilian's leg once he was in handcuffs, as he was not using his legs to resist or kick at this point, thereby making the use of force excessive, regardless of how "de minimis" the assault was.

CCRB respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon PO Weaver be served.

Respectfully submitted,

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

February 21, 2025

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Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

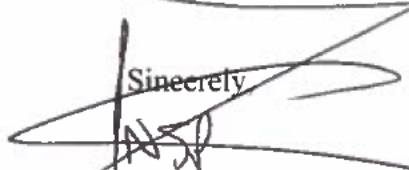
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated February 20, 2025, regarding the CCRB case involving Police Officers Matos and DiFrancesca and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said officers for the reasons expressed in my February 18, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Police Officer Matos and Police Officer DiFrancesca, for their alleged misconduct.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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